

The Central Trade Union Regulations, 1938

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Union of India - Act

The Central Trade Union Regulations, 1938

UNION OF INDIA

India

The Central Trade Union Regulations, 1938

Rule THE-CENTRAL-TRADE-UNION-REGULATIONS-1938 of 1938

Published on 16 June 1938

Commenced on 16 June 1938

[This is the version of this document from 16 June 1938.]

[Note: The original publication document is not available and this content could not be verified.]

The Central Trade Union Regulations, 1938

Published vide Notification No. L-1785, dated 16.6.1938.

1058.

In exercise of the powers conferred by section 29 of the Indian Trade Unions Act, 1926 (

16 of 1926

), and by the said section of the said Act as in force in Berar, the Central Government is pleased, in relation to Trade Unions whose objects are not confined to one [State]

[Substituted by A.O. 1950, for " Province" .]

, to make the following regulations, the same having been previously published as required by sub-section (1) of section 30 of the said Act, namely :-

1.

Title and application .-(1) These regulations may be called The Central Trade Union Regulations, 1938.

(2)

The regulations apply to Trade Unions whose objects are not confined to one [State].

2.

Definitions .-In these regulations-

(a)

"the Act" means the Indian Trade Unions Act, 1926 (16 of 1926

).

(b)

"Form" means a form appended to these regulations.

(c)

"section" means a section of the Act.

3.

Application for registration .-Every application for registration of a Trade Union shall be made in Form A.

4.

Register of Trade Unions .-The Register of Trade Unions referred to in section 8 shall be maintained in Form B.

5.

Certificate of Registration .-(1) The Certificate of Registration issued by the Registrar under section 9 shall be in Form C.

(2)

When the Registrar registers a change of name under section 25, sub-section (3), he shall certify under his signature at the foot of the certificate on its presentation to him by the Secretary that the new name has been registered.

6.

Cancellation of registration .-The Registrar on receiving an application for the cancellation of registration shall, before granting the application, satisfy himself that the withdrawal or cancellation of registration was approved by a general meeting of the Trade Union, or if it was not so approved, that it has the approval of the majority of the members of the Trade Union. For this purpose, he may call for such further particulars as he may deem necessary and may examine any officer of the Union.

7.

Unions registered with [State] Registrars

.-If the application is made by a Trade Union which has previously been registered by the Registrar of any [State]

[Substituted by A.O. 1950, for " Province" .]

the union shall submit with its application a copy of the certificate of registration granted to it and copies of the entries relating to it in the Register of Trade Unions for the [State]

[Substituted by A.O. 1950, for " Province" .]

.

8.

Fees .-The fee payable for the registration of a Trade Union shall be Rs. 5.

9.

Amendment of rules .-(1) On receiving a copy of an application made in the rules of a Trade Union under section 28(3), the Registrar, unless he has reason to believe that the alteration has not been made in the manner provided by the rules of the Trade Union, shall register the alteration in a register to be maintained for this purpose and shall notify the fact that he has done so to the Secretary of the Trade Union.

(2)

The fee payable for registration of alteration of rules shall be Re. 1 for each set of alterations made simultaneously.

10.

Appeals .-Any appeal made under section 11(1) of the Act must be filed within sixty days of the date on which the Registrar passed the order against which the appeal is made.

11.

Funds of a dissolved Trade Union .-Where it is necessary for the Registrar, under section 27(2) to distribute the funds of a Trade Union which has been dissolved, he shall divide the funds in proportion to the amounts contributed by the

members by way of subscription during his membership.

12.

Return .-The annual return to be furnished under section 28 shall be submitted to the Registrar by the 31st day of July in each year and shall be in Form D.

13.

Auditors .-(1) Save as provided in sub-clauses (2), (3), (4) and (5) of this regulation, the annual audit of the account of any registered Trade Union shall be conducted by an auditor authorised to audit the accounts of companies under section 144(1) of the [Indian Companies Act, 1913] or under section 3(2) of the Indian Companies (Amendment) Act, 1930.

(2)

Where the membership of Trade Union did not at any time during the financial year exceed 2,500, the annual audit of the accounts may be conducted-

(a)

by any examiner of local fund accounts; or

(b)

by any local fund auditor appointed by the [State]

[Substituted by A.O. 1950, for " Provincial" .]

Government; or

(c)

by the person, who, having held an appointment under Government in any audit or accounts departments, is in receipt of a pension of not less than Rs. 200 per mensem.

(3)

Where the membership of a Trade Union did not at any time during the financial year exceed 750, the annual audit of the accounts may be conducted-

(a)

by any two persons holding office as magistrates or judges or as members of any municipal council, district board, or legislative body; or

(b)

by any person, who, having held an appointment under Government in any audit or accounts department, is in receipt of a pension from Government of not less than Rs. 75 a month, or

(c)

by any auditor appointed to conduct the audit of any co-operative societies by Government or by the Registrar of Co-operative Societies or by any State co-operative organisation recognised by Government for this purpose.

(4)

Where the membership of a Trade Union did not at any time during the financial year exceed 250, the annual audit of the accounts may be conducted by any two members of the Union.

(5)

Where the Trade Union is a federation of unions, and the number of unions affiliated to it at any time during the financial year did not exceed 50, 51 or 5, respectively, the audit of the accounts of the federation may be conducted as if it had not at any time during the year had a membership of more than 2,500, 750 or 250, respectively.

14.

Exception .-Notwithstanding anything contained in Regulation 13, no person, who, at any time during the year, was entrusted with any part of the funds or securities belonging to the Trade Union shall be eligible to audit the accounts of that Union.

15.

Audit .-The auditor or auditors appointed in accordance with the regulations shall be given access to all the books of the Trade Union and shall verify the annual return with the accounts and vouchers relating thereto and shall thereafter sign the auditor's declaration appended to Form D, indicating separately on that form under his signature or their signatures a statement showing in what respect he or they find the return to be incorrect, unvouched or not in accordance with the Act. The particulars given in this statement shall indicate-

(a)

- every payment which appears to be unauthorised by the rules of the Trade Union or contrary to the provisions of the Act,
- (b)
the amount of any deficiency or loss which appears to have been incurred by the negligence or misconduct of any person,
- (c)
the amount of any sum which ought to have been but is not brought to account by any person.

16.

Audit of political funds .-The audit of the political funds of a registered Trade Union shall be carried out alongwith the audit of the general account of the Trade Union and by the same auditor or auditors.

17.

Inspection .-(1) The register of Trade Unions maintained in accordance with Regulation 4 shall be open to inspection by any person on payment of a fee of annas eight.

(2)

Any documents in the possession of the Registrar received from a registered Trade Union may be inspected by any member of that Union on payment of a fee of annas eight for each document inspected.

(3)

Documents shall be open to inspection every day on which the office of the Registrar is open and within such hours as may be fixed for this purpose by the Registrar.

(4)

The Registrar may supply a certified copy of any such document to a registered Trade Union or a member thereof on payment of annas twelve for the first two hundred words (or less) and annas six for every additional hundred words or fractional part thereof.

FORM A

APPLICATION FOR REGISTRATION OF TRADE UNION

Date the.....day of.....20.....

1. We hereby apply for the registration of a Trade Union under the name of.....
2. The address of the head office of the Union is.....
3. The Union came into existence on the.....day of.....20.....
4. The Union is a Union of employers/workers engaged in the industry (or profession).
5. The particulars required by section 5(1)(c) of the Indian Trade Unions Act, 1926, are given in Schedule I.
6. The particulars given in Schedule II show the provision made in the rules for the matters detailed in section 6 of the Indian Trade Unions Act, 1926.
7. (To be struck out in the case of unions which have not been in existence for one year before the date of application).
The particulars required by section 5(2) of the Indian Trade Unions Act, 1926, are given in Schedule III.
8. We have been duly authorised to make this application.

Signature

Occupation

Address

Signed

- 1
- 2
- 3
- 4
- 5
- 6
- 7

To the Registrar of Central Trade Unions, Delhi.

I - LIST OF OFFICERS

Title

Name

Age

Address

Occupation

Note.-Enter in this Schedule the names of all member of the executive of the Union showing in column 1 the names of any posts held by them (e.g., President, Secretary, Treasurer, etc.) in addition to their offices as members of the executive.

II - REFERENCE TO RULES

The number of the rules-making provision for the several matters detailed in column 1 are given in column 2 below :

Matter

Number of rules

1

2

Name of union

The whole of the objects for which the union has been established

The whole of the purposes for which the general funds of the union shall be applicable

The maintenance of a list of members.

The facilities provided for the inspection of the list of members by officers and members.

The admission of ordinary members.

The admission of honorary or temporary members.

The conditions under which members are entitled to benefit assured by the rules.

The condition under which fines or forfeitures can be imposed or varied.

The manner in which the rule shall be amended, varied or rescinded.

The manner in which the members of the executive and the other officers of the union shall be appointed and removed.

The safe custody of the funds

The annual audit of the accounts.

The facilities for the inspection of the account books for officers and members.

The manner in which the union may be dissolved.

III - STATEMENT OF LIABILITIES AND ASSETS ON THEDAY OF....20...

(This need not be filled in if the Union came into existence less than one year before the date of application for registration.)

Liabilities

Rs.P.

Assets

Rs.P.

Amount of general fund

Cash-

Amount of political fund

In hands of Treasurer

Loans

.From

In hands of Secretary

Other liabilities (to be specified)

In hands of-

In the Bank

In the Bank

Securities as per list below

Unpaid subscription due

Loans to-

Immovable property

Goods and furniture

Other assets (to be specified)

Total Liabilities

Total Assets

LIST OF SECURITIES

Particulars

Nominal

Market value

In hands of

1.

2.

3.

4.

5.

6.

7.

FORM B

REGISTER OF TRADE UNIONS

Serial No.

Officers

Name of Union

Address of Head Officer

Date of Registration

Year of entering in office

Name

Age of entry

Address

Occupation

Year of relinquishing office

Other offices held in addition to membership of executive with date

Number of application from

List of members applying for registration

1.

2.

3.

4.

5.

6.

7.

FORM C

CERTIFICATE OF REGISTRATION OF TRADE UNION

No.

It is hereby certified that the.....has been registered under the Indian Trade Unions Act, 1926, this.....day of.....20.....

Seal

Registrar of Central Trade Unions

FORM D

ANNUAL RETURN PRESCRIBED UNDER SECTION 28 OF THE INDIAN TRADE UNIONS ACT, 1926, FOR THE YEAR ENDING ON 31st MARCH, 20.....

Name of Union

Registered Head Office

Number of certificate of registration

Return to be made by federations of Trade Unions.

Number of unions affiliated at the beginning of year.

Number of unions joining during the year.

This return need not be made by federations of Trade Unions

Number of unions disaffiliated at the end of year

Number of members on books at the beginning of year.

Number of members admitted during the year (add) together.

Number of members who left during the year (deduct).

Total number of members on books at the end of the year.

Males

Females

Number of members contributing to political fund.

A copy of the rules of the Trade Union, corrected up to the date of despatch of this return, is appended.

Dated the.....

Secretary

Statement of Liabilities and assests on the.....day of.....20.....

Liabilities

Rs.P.

Assets

Rs.P.

Amount of general fund

Cash-

In hands of Treasurer

Amount of political fund

In hands of Secretary

Loans

.from

In hands of-

Debt due to

In the Bank

Other liabilities (to be specified)

In the Bank

Securities as per list below

Unpaid subscriptions due

Loans to-

Immovable property

Goods and furniture

Other assets (to be specified)

Total Liabilities

Total Assets

List of Securities

Particulars

Nominal value

Market value at date on which accounts have been made up

In hands of

General Fund Account

Income

Rs.P.

Expenditure

Rs.P.

Balance at beginning of year

Salaries, allowances and expenses of officers

Contributions from members as per member

Salaries, allowances and expenses of establishment

Donations

Auditor's fee

Sale of periodicals, rules, etc

Legal expenses

Interest on investments

Expenses in conducting trade disputes

Income from miscellaneous sources (to be specified)

Compensation paid to members for loss arising out of trade disputes

Funeral,

old age, sickness, unemployment benefits, etc.

Educational, social and religious benefits

Cost of publishing periodical.

Rent, rates and taxes

Stationary, printing and postage

Expenses incurred under section 15(j) of the Indian Trade Unions Act, 192 (to be specified)

Other expenses (to be specified)

Balance at the end of year

Total

Total

Political Fund Account

Rs. P.

Rs.P.

Balance at beginning of year

Payments made on objects specified in section 16(2) of the Indian Trade Unions Act, 1926 (to be specified)

Contribution from members as per member

Balance at the end of year

Total

Total

Treasurer

Auditor's Declaration

The undersigned, having had access to all the books and accounts to the Trade Union and having examined the foregoing statements and verified the same as found to be correct, duly vouched and in accordance with the law, subject to the remarks, if any, appended hereto.

The following changes of officers have been made during the year-

Officers Relinquishing Office

Name

Office

Date of relinquishing

Officers Appointed

Name

Age

Office

Address

Occupation

Date of appointment

Secretary

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